REPORTABLE (20)

TENDAI BONDE
v
(1) NATIONAL FOODS LIMITED (2) THE SHERIFF OF THE HIGH COURT N.O

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHITAKUNYE JA & MWAYERA JA
BULAWAYO: 19 & 21 NOVEMBER 2025

The applicant in person

Ms *V. Chagonda*, for the first respondent

No appearance for the second respondent

CHITAKUNYE JA. This is a court application brought in terms of rule 29 (1) (b) of the High Court Rules, 2021, as read with rule 81 of the Supreme Court Rules, 2025, in which the applicant seeks the correction of a judgment issued in chambers under case number SCB 88/25. The application is predicated on the assertion that the judgment contains a patent error warranting correction. After hearing submissions from the parties, the court dismissed the application with costs on the legal practitioner and client scale. Hereunder are the reasons for the court's decision.

FACTUAL BACKGROUND

When MCNALLY JA lamented in *Ndebele* v *Ncube* 1992 (1) ZLR 288 (S) at 290C–E, that there ought to be finality in litigation, lest the costs of pursuing it ultimately exceed the capital sum in dispute, he might well have had in contemplation a matter somewhat similar to the one presently before us. The applicant has frequented the corridors of this Court,

and those of the courts below, for a considerable period thus incurring costs he can no longer afford to pay.

It is common cause that the applicant is a former employee of the first respondent. The second respondent is cited in his official capacity as the Sheriff of Zimbabwe. The parties have, over the years, engaged in a protracted and multi-layered history of litigation arising from the applicant's dismissal from employment.

The latest chapter of this long-drawn out saga can be traced to the institution of proceedings in the High Court, under case number HC 54/23, in which the applicant sought to stay the execution of a court order which had been granted against him in favour of the first respondent. The first respondent had paid execution costs in the sum of US$ 638.00 to the second respondent and thereafter sought reimbursement from the applicant. When repayment was not forthcoming, the second respondent placed the applicant's immovable property, being Stand Number 370, Nketa 6 Township of Lot 400A, Umganwini ("the property"), under judicial attachment as security for the recovery of the US$ 638.00

To save his property, the applicant applied for the suspension of the impending sale in execution of the property under HC 1284/23, asserting, firstly, that he had settled the debt in Zimbabwean dollars and, secondly, that the property was jointly owned with his wife. Both contentions were firmly disputed by the first respondent.

The court *a quo* found that the applicant had failed to discharge the debt, having adduced no evidence to that effect. It further held that the title deed did not reflect co-ownership of the property and that the applicant had not settled the United States dollar component of the debt. Consequently, the court dismissed the application for stay of execution.

Aggrieved by that decision, the applicant mounted an appeal in SCB 81/25, which remains pending before this Court. He concurrently launched a chamber application in HCBC 413/25 seeking the correction of the same judgment under HC 1284/23, which is also pending before the High Court. In consequence, the second respondent suspended execution pending determination of the application for correction.

Notwithstanding the suspension, the applicant proceeded to file an urgent chamber application before this Court in SCB 88/25, seeking a stay of execution of the writ issued in HC 1284/23. He relied on r 59 (6) and r 71(14) of the High Court Rules 2021 as read with r 73 of the Supreme Court Rules, 2018. His apprehension stemmed from the fact that, although the second respondent had suspended execution, the first respondent might nevertheless proceed with the disposal of the property. He also reiterated his contention that the debt had been extinguished. No opposing papers had been filed in opposition to the application

At the hearing of the matter, Ms *Chagonda*, for the first respondent took a point *in limine*, to the effect that her client (the first respondent) had not been served with the urgent chamber application. On the other hand, the applicant argued that he had served the first respondent with the urgent chamber application. The Court accordingly directed the parties to file heads of argument on this issue.

In motivating the point *in limine*, the first respondent's Counsel submitted that the affidavit of service relied upon by the applicant did not comply with r 14 (2) (d) of the Supreme Court Rules as no copy of the urgent chamber application was attached to the email.

In response, the applicant, relying on a letter he had written advising that he had filed the urgent chamber application, insisted that the first respondent had been served.

In his heads of argument, he further contended that the first respondent had irregularly filed heads of argument without first filing a notice of opposition, an opposing affidavit or a board resolution.

The Court found that there was no valid proof that service had been properly effected on the first respondent. The applicant's proof of service consisted merely of an email and an affidavit, with no copy of the urgent chamber application attached, contrary to the clear requirements of the Rules. The urgent chamber application was accordingly struck off the roll for want of proof of proper service.

The present application, thus, seeks the correction of the Court's order on the following grounds:

> "(a) The court made a patent error in interpreting rule 16 (1) & (2) of Supreme Court Rules, 2025 when insisting on physical documents whereas the service in issue was electronic.
>
> (b) The court made a patent error in adopting heads of arguments as sole opposing documents whereas the 1st respondent did not have notice of opposition, opposing affidavit and resolution of the board of directors."

Premised on the above grounds, in the notice of application, he seeks relief couched as follows:

> "**RELIEF SOUGHT**
>
> **WHEREFORE**, the applicant prays for an order that:
>
> "The application is allowed with costs."
>
> **AND IT IS ORDERED THAT**:
>
> The order of the Supreme Court under case number SCB 88/25 be and is hereby corrected as follows:
>
> "The application for stay of execution succeeds with costs."

In the draft order, the relief sought is couched in these terms:

> "1. The application for correction of order SCB88/25 is hereby granted.
> 2. The Court to issue the provisional order under SCB88/25.

3. There is no order to costs if the application is not opposed."

Though couched differently it is clear that the applicant is effectively seeking the setting aside of the order striking the matter off the roll and substituting it with an order granting the application he had approached the court for.

SUBMISSIONS BEFORE THIS COURT

The applicant submitted that there was a patent error and a misapplication of the law in the order and judgment of this Court. He explained that, at the time of filing the application, only the order had been attached because the judgment had not yet been made available but now the judgment had been availed as judgment number SC 72/25.

The applicant averred that the patent error was attributable to the Court itself, in that, the Court had determined the matter on the basis of r 14 of the Supreme Court Rules, 2025 when, in fact, he had effected service in terms of r 16 (1). He further argued that, if this error had not been committed, the application would have stood as unopposed and would have automatically been granted. He submitted that he seeks a factual correction of the judgment, namely, a finding that service had been effected electronically in terms of r 16, which service, in his view, was sufficient. He further contended that the judge had erred in several respects, particularly by relying on r 14.

The Court inquired whether the applicant fully appreciated the meaning of a "patent error" in the context of r 29. It pointed out to the applicant that the error contemplated under r 29 does not relate to the substantive reasoning or findings of the Court but to an error or ambiguity apparent on the face of the judgment. The Court sought clarity from the applicant as to whether he was, in effect, inviting the Supreme Court to sit as an appellate court over its own judgment.

In response, the applicant submitted that the Supreme Court possessed the power under s 25 of the Supreme Court Act [*Chapter 13:07*] to review its own decisions. He maintained that the alleged error on the face of the judgment concerned the rule governing service, r 16 rather than r 14, and was therefore a correctable mistake of fact. He further submitted that, if no such error existed, the Court could refer the matter to the Constitutional Court in terms of s 175 of the Constitution.

Per contra, Ms *Chagonda*, for the first respondent, stated that she abided by the submissions in the heads of argument and sought to emphasise two key points. Firstly, she submitted that the application was fundamentally wrong and bad in law. She argued that the applicant had failed to demonstrate any ambiguity or patent error in the order or judgment in the matter under SCB 88/25, and that he was merely dissatisfied with the substantive findings contained therein. In her view, the requirements for an application for the correction of a judgment had not been met.

Secondly, counsel submitted that a correction under r 29 cannot result in the alteration or replacement of the Court's original decision. She contended that the relief sought by the applicant would have the effect of completely overturning the judgment of this Court. She thus contended that the application lacked merit and ought to be dismissed.

On costs, counsel sought costs on the punitive scale contending that the application was frivolous and vexatious. She argued that the applicant had been made aware, through the notice of opposition, of the defects in his application but elected nonetheless to persist with it. She further contended that the application amounted to an abuse of court process and urged the Court to safeguard its processes with an order for punitive costs. She noted that, although the applicant appeared in person, he was no stranger to the courts and was well aware of the requirements governing applications of this nature.

In reply, the applicant denied that his application was an abuse of court process. He maintained that he had not approached the Court frivolously and reiterated his argument regarding the alleged patent error. He prayed for the granting of the application and implored the Court to uphold justice, submitting that the Court may depart from the general rules where the interests of justice so require.

ISSUES FOR DETERMINATION

The issues that fall for determination may be distilled as follows:

1. Whether the applicant has established that there is an ambiguity or a patent error warranting correction of the court's order in terms of r 29 (1) (b) of the High Court Rules 2021 as read with r 81 of the Supreme Court Rules, 2025.
2. Whether, in the circumstances of the present case, an award of costs on a punitive scale is warranted

THE APPLICABLE LAW AND ANALYSIS

1. Whether the applicant has established that there is an ambiguity or a patent error warranting correction of the court's order in terms of r 29 (1) (b) of the High Court Rules, 2021 as read with rule 81 of the Supreme Court Rules, 2025.

Rule 29 (1) (b) of the High Court Rules 2021, under which this application was brought and which is made applicable in these proceedings by virtue of r 81 of the Supreme Court Rules, 2025, provides for the correction, variation and rescission of judgments and orders in these terms:

> "29 (1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary—
>
> (*a*) …….; or
>
> (*b*) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission; or …."

A reading of the above rule reveals that it confers a limited and strictly confined power to the court in relation to the correction or variation of its own judgments. It can be

deduced from the wording of the rule that the provision is not intended to facilitate the indirect reopening of matters already decided, or to permit a dissatisfied litigant to secure a reconsideration of the merits through the back door. The rule exists solely to allow a court to reconcile ambiguities in its judgment or to correct errors apparent on the face of the order or the judgment itself that may be rectified without the need to revisit evidence, arguments, or the court's substantive findings. Hence the correction is only to the extent of such ambiguity, error of omission.

In *Jongwe & Anor* v *National Foods Ltd* SC 91/25, at pp 11-12, UCHENA JA aptly clarified what constitutes a patent error in these words:

> "[35] What constitutes a patent error for purposes of r 29 (1) (b) must be a mistake by the court, in pronouncing its intended judgment or order. This was clarified by DUBE J (as she then was) in *Hopcik Investments (Pvt) Ltd* v *Minister of Environment, Water and Climate and City of Harare* HH 336/16 at pp 4 to 5 of the judgment as follows:
>
> > 'Coming to the nature of the error made, Herbstein and Van Winsen in *The Civil Practice of the High Courts of South Africa*, 5th ed at p 934, describe a 'patent error or omission' as:
> >
> > > 'An error or omission as a result of which the judgment or order granted does not reflect the intention of the judicial officer pronouncing it.'
>
> The authors state that the patent error or omission must be attributable to the court itself and that relief will only be accorded where the terms of the judgment or order do not reflect the true intention of the presiding judge. In the *Firestone* case, TROLLIP J held at p 304 DH, that in a case involving correction of an order in terms of r 42 of the Uniform Court Rules of South Africa which is identical to our own r 449, that the court has the power to clarify its own judgments or orders so as to give effect to their true meaning and true intention of the court for as long as it does not alter the 'sense and substance' of the judgment or order.
>
> …
>
> The court should endeavor to do so without altering the 'sense or substance' of the judgment or order and must ensure that it does not admit a different interpretation to the judgment or order. Consequently, this exception is limited only to the correction of the order. The r 449 (1) (b) (2) caters for mistakes attributable to the court. The correctness of the order or judgment originally issued is not an issue but rather whether the court made a patent error or omission and in addition whether the order granted reflects the true intention of the court. The court may not substitute its judgment or

> order for another one completely different. The rule is meant merely to facilitate clarification of orders or judgments.'" (Underlining for emphasis)

The authorities cited above reiterate the confines of the power granted to a court to correct its own judgment. They emphasise that a patent error is an inconsistency between what the court intended and what was actually pronounced. Turning to the present matter, the applicant contends that the order he seeks to correct contains a patent error. The question, therefore, is whether, on a proper reading of his grounds for correction, his founding affidavit, and the submissions made before this Court, he has succeeded in demonstrating such an error.

It is pertinent to note that during submissions before this Court, the applicant did not argue that there was anything on the face of the order that the Court did not intend to be there. The applicant also did not contend that the judgment contained any ambiguity or lacked clarity. His argument was, in mild terms, divorced from the requirements established by the authorities cited above and contemplated by r 29.

In his grounds for correction, the applicant advanced the argument that the Court made a patent error in its interpretation of the rules governing service, particularly r 16 (1) and (2) of the Supreme Court Rules, 2025. He further argued that the Court erred in accepting the first respondent's heads of argument in place of opposing papers. In his oral submissions, which mirrored his founding affidavit in material aspects, he essentially argued that the Court misapplied the law and erred in finding that service had not been properly effected. He went on to state that the "judge erred in many areas," particularly in ruling in terms of r 14.

It is axiomatic from the above that the applicant's case is that the Court erred in arriving at its decision. His explicit reliance on the phrase "the court erred" places it beyond doubt that he is not seeking a correction in terms of r 29 but is, in substance, asking the Court to revisit the merits of the matter.

This conclusion is further reinforced by the relief that he seeks. The applicant requests that the Court's order be corrected to read:

"The application for stay of execution succeeds with costs."

The order originally handed down by this Court, however, was that the matter be struck off the roll. The relief now sought would substitute that order with a completely different substantive outcome. It would, in effect, reverse the Court's decision by declaring the application for stay of execution successful. Such relief is substantive, not procedural; it goes to the merits of the case and constitutes a complete reversal of the outcome, which was held in the *Jongwe* case (*supra*), at para 46, to be untenable.

When these points were drawn to the applicant's attention, together with the untenability of inviting this Court to sit, in effect, as a court of appeal over its own decision, he sought to shift ground. He urged the Court to invoke its powers of review under s 25 of the Supreme Court Act. What appeared lost to the applicant is that s 25 does not confer upon this Court an unfettered jurisdiction or the latitude to revisit its own final orders. The section reads, in material part:

"**25 Review powers**

(1) Subject to this section, the Supreme Court and every judge of the Supreme Court shall have the same power, jurisdiction and authority as are vested in the High Court and judges of the High Court, respectively, to review the proceedings and decisions of inferior courts of justice, tribunals and administrative authorities.

(2) The power, jurisdiction and authority conferred by subsection (1) may be exercised whenever it comes to the notice of the Supreme Court or a judge of the Supreme Court that an irregularity has occurred in any proceedings or in the making of any decision notwithstanding that such proceedings are, or such decision is, not the subject of an appeal or application to the Supreme Court.

(3) Nothing in this section shall be construed as conferring upon any person any right to institute any review in the first instance before the Supreme Court or a judge of the Supreme Court, and provision may be made in rules of court, and a judge of the Supreme Court may give directions, specifying that any class of review or any particular review shall be instituted before or shall be referred or remitted to the High Court for determination."

The wording of s 25 is unequivocal. The review powers it confers relate to inferior courts, tribunals and administrative authorities. It does not empower this Court to review or overturn its own decisions. That is only permissible on appeal, and the decisions of this Court in non-constitutional matters are, by constitutional design, final. The applicant appeared to suggest that a decision of a judge of the Supreme Court sitting in chambers may be reviewed by a three-judge panel of this Court. He pointed to no authority for that proposition. None exists. The suggestion is untenable.

Perhaps realising the fragility of that position, the applicant pressed further and sought refuge in an argument that the matter could be referred to the Constitutional Court in terms of s 175 of the Constitution. The basis for such a referral was not articulated, which reinforced the impression that the applicant, in his submissions, was employing the "machine gun" approach in advancing arguments indiscriminately, in the forlorn hope that one might gain traction. In any event, the request was misconceived. In *Nyagura* v *Ncube N.O. & Ors* 2019 (1) ZLR 521 at 527B-C (CC) the Constitutional Court held that a presiding judicial officer must consciously consider whether the request for a referral of a matter to the Constitutional Court is frivolous or vexatious and whether a constitutional determination is necessary for the resolution of the matter.

Similarly, in *Nyathi* v *The State* CCZ 16/19, at p 10, the Court stressed the protective function of the s 175 (4) procedure, thus:

> "The importance of guarding the Court against the abuse of its process through the adjudication of matters that ought not to have passed the frivolity or vexatiousness test cannot be overemphasised. The Court must protect its integrity and ensure that it only adjudicates that which it is constitutionally mandated to hear and determine. Consequently, where the procedures of the Court are used to achieve purposes for which they are not intended that would amount to an abuse of process. It is in this context that presiding persons ought to exercise their minds when seized with a request for a referral to the Court."

Measured against these principles, the applicant's request was plainly devoid of merit. No constitutional issue arises, let alone one necessary for the resolution of these proceedings. The inescapable conclusion from the foregoing considerations is that the applicant has not satisfied the requirements for the correction of this Court's order under r 29. He has dismally failed to identify any patent error, whether on the face of the judgment or in the formulation of the order, that would warrant the intervention contemplated by the rule. On this finding, the present application ought to fail.

2. Whether, in the circumstances of the present case, an award of costs on a punitive scale is warranted.

Counsel for the first respondent sought an award of costs on the punitive scale on the basis that the present application is frivolous and vexatious, and therefore an abuse of court process. The record supports that contention. Counsel further submitted that the applicant, notwithstanding being a self-actor, is not entitled to a separate or more indulgent set of procedural standards.

The applicant, on the other hand, resisted such an order, contending that he should not be penalised for prosecuting what he perceived to be a legitimate grievance and that he acted under a genuine fear that his property might be attached.

The principles governing the grant of punitive costs are well settled. In *Nel* v *Waterberg Landbouwers Ko-operatieve Vereeniging* 1946 AD 597 at 607, the Court stated that:

> "The true explanation of awards of attorney and client costs not expressly authorized by statute seems to be that, by reason of special considerations arising either from the circumstances which give rise to the action or from the conduct of the losing party, the court in a particular case considers it just, by means of such an order, to ensure more effectually than it can do by means of a judgment for party and party costs that the successful party will not be out of pocket in respect of the expense caused to him by the litigation ."

Furthermore, AC Cilliers in *The Law of Costs* 2nd ed p 66, classified the grounds upon which the court would be justified in awarding costs as between attorney and client as follows:

> "(a) Vexatious and frivolous proceedings
> (b) Dishonesty or fraud of litigant
> (c) Reckless or malicious proceedings…"

In the Court's view, that the present application is frivolous is beyond dispute. The meaning of the phrase "frivolous or vexatious" was explained in *Williams & Anor* v *Msipha N.O. & Ors* 2010 (2) ZLR 552 (S) at 568C – F, by MALABA DCJ (as he then was), when he alluded to the words of BOSHOFF J in *S* v *Cooper & Ors* 1977 (3) SA 475 at 476D, that the word "frivolous," in its ordinary and natural meaning, connotes an action or legal proceeding characterised by a lack of seriousness, such as one that is manifestly insufficient. A matter is frivolous where it is *"obviously lacking in seriousness, unsustainable, manifestly groundless or utterly hopeless and without foundation in the facts on which it is purportedly based."*

In casu, the applicant was alerted in the opposing papers to the defects and shortcomings besetting his application. Despite this, he elected to persist. It was further observed by counsel for the first respondent, and with justification, that the applicant is no stranger to litigation and, in the circumstances, ought reasonably to have been aware of the proper procedural course to adopt. The order he now seeks to "correct" was one merely striking his matter off the roll. Instead of mounting this ill-conceived application, thereby occasioning the incurrence of unnecessary costs, he could simply have rectified the procedural defect found by the court and prosecuted his claim with expedition as provided for by Practice Direction 3 of 2013. He, instead, chose to litigate in an entirely different arena. This conduct, viewed objectively, satisfies the *Williams* test for frivolity.

This Court is mindful that self-actors are generally entitled to a degree of latitude. However, such indulgence is not unbounded. The history of the case between the parties alluded to above shows that the applicant has a penchant for litigation. The applicant has developed a pattern of instituting multiple applications simultaneously, some of which could have been avoided had he simply accepted the procedural inadequacies pointed out and focused on correcting them. The present matter falls squarely into that category. The court cannot be expected to indulge conduct that unnecessarily burdens the judicial process and subjects other litigants to undue delay and expense in bringing finality to litigation. The first respondent has evidently been unnecessarily put out of pocket defending a baseless application. It is, therefore, only proper that punitive costs be granted in the present case.

DISPOSITION

From the foregoing, the application is devoid of merit and ought to fail. The applicant failed to identify any ambiguity or patent error in the order sought to be corrected, as required by r 29 (1) (b) of the High Court Rules, 2021, as read with r 81 of the Supreme Court Rules, 2023. What is sought is not the correction of a patent error or ambiguity, but the revisiting of a decision properly made. That is impermissible. The application is frivolous and an abuse of court process. Resultantly, an award of costs on the ordinary scale would not adequately reflect the impropriety of the applicant's conduct. In the circumstances, an award of costs at a legal practitioner and client scale is warranted.

In the result, the court issued an order in the following terms:

"It is ordered that:

1. The application be and is hereby dismissed.
2. The applicant shall bear the first respondent's costs of suit on the legal practitioner and client scale."

MAVANGIRA JA : I agree

MWAYERA JA : I agree

Calderwood, Bryce Hendrie & Partners, first respondent's legal practitioners.